

they sever, the extra costs thereby occasioned must be borne by the defaulting party (*f*). It is conceived that this rule, so strictly observed in Court, must not be lost sight of in transactions out of Court, and that co-trustees are bound, unless they can show good reason to the contrary, to act by the same *solicitor* and the * same *counsel*. It [*261] would be a strange anomaly if four trustees were allowed only one solicitor and one counsel in Court, and four separate solicitors and four separate counsel out of Court. Every trustee should be prepared to act in harmony with his co-trustees, or he should not accept the office. It may be said that as each trustee is responsible for the due administration of the trust, he ought to be at liberty to employ a professional adviser of his own choosing, but this argument would *a fortiori* apply to so important a matter as the defence of a suit, and yet there the Court pays no attention to it.

Fourthly. On the death of one trustee the joint office survives.¹

1. **Survivorship of the trust.** — It is a well-known maxim that a *bare authority* committed to several persons is determined by the death of any one; but, if coupled with an *interest*, it passes to the survivors (*a*). Thus, the committees of a lunatic's estate are regarded in the light of mere bailiffs

[(*f*) If one of the trustees be a defaulter or indebted to the trust estate, the other trustees will be justified in severing from him, *Smith v. Dale*, 18 Ch. D. 516, 518.]

(*a*) Co. Lit. 113 a, 181 b; *Butler v. Bray*, Dyer, 189 b; *Attorney-General v. Gleg*, 1 Atk. 356; *S. C. Amb.* 584; *Goulds*, 2, pl. 4; *Peyton v. Bury*, 2 P. W. 628; *Mansell v. Vaughan*, Wilm. 49; *Eyre v. Countess of Shaftes-*

bury, 2 P. W. 108, 121, 124. [In the case of executorships and trusts constituted after or created by instruments coming into operation after the 31st Dec. 1881, 44 & 45 Vict. c. 41, s. 38, provides that a power or trust given to two or more executors or trustees jointly, may, subject to any direction to the contrary, be exercised or performed by the survivor or survivors for the time being.]

¹ A naked authority ceases at the death of the one having it, but if coupled with an interest, as in the case of co-trustees, it survives; *Gregg v. Currier*, 36 N. H. 200; *De Peyster v. Ferrers*, 11 Paige, 13; *Parsons v. Boyd*, 20 Ala. 112; *Aubuchon v. Lory*, 23 Mo. 99; *Moses v. Murgatroyd*, 1 Johns. Ch. 119; on the death of one co-trustee, the whole authority and power devolves upon the survivor; *Golder v. Bressler*, 105 Ill. 419; *Nichols v. Campbell*, 10 Gratt. 560.